



July 18, 2022

Chief, Foreign Investment Review Section (FIRS)
Deputy Chief, Compliance and Enforcement (FIRS)
On Behalf of the Assistant Attorney General for National Security
United States Department of Justice
National Security Division
175 N Street, NE
Washington, DC 20530

Subject: TT 21-086 to -090; WC 21-463; ITC-T/C-20211124-00181; ITC-T/C-20211130-00182; and ITC-T/C-20211130-00183

Joint application by GCX Holdings Limited for consent to transfer of control of domestic and international authorizations pursuant to Section 214 of the Communications Act of 1934, as amended, to provide global or limited global facilities-based and resale services.

Dear Sir/Madam:

This Letter of Agreement (“LOA” or “Agreement”) sets forth the commitments that GCX Holdings Limited (GCX Holdings), and its subsidiaries: Vanco US, LLC, Vanco Solutions, Inc., Reliance Globalcom Services, Inc. (with GCX Holdings, collectively “GCX Companies”), and 3i Infrastructure plc (“3iN”) (with GCX Companies, collectively “Parties”), make to the U.S. Department of Justice (“USDOJ”), including the Federal Bureau of Investigation (“FBI”), to address national security and law enforcement risks arising from the above-referenced application to the Federal Communications Commission (“FCC”) requesting consent for the transfer of control of the GCX Companies, including their domestic and international Section 214 authorizations, to Reef Bidco Limited (a 3iN subsidiary). The GCX Companies hold a blanket domestic Section 214 authorization pursuant to 47 C.F.R. § 63.01 and three international Section 214 authorizations to provide global resold and facilities-based telecommunications services between the United States and international points pursuant to Section 214 of the Communications Act of 1934, as amended, 47 U.S.C. § 214, and the implementing regulation at 47 C.F.R. § 63.18(e).

The Parties certify as true and correct, under penalties outlined in 18 U.S.C. § 1001, all statements they or their representatives have made to USDOJ, including the FBI, the Department of Homeland Security, the Department of Defense, and the FCC in the course of the review of



the above-referenced application that was conducted pursuant to Executive Order 13913,¹ and they hereby adopt those statements as the basis for this LOA.

On the Date of the FCC Approval of the applications at issue in this LOA, the November 25, 2020 Letter of Assurances to DOJ,² executed by GCX Holdings Limited, Vanco US, LLC, Vanco Solutions, LLC, and Reliance Globalcom Service, Inc is terminated and superseded by this LOA.

Definitions

1. For purposes of this LOA, the following definitions apply:
 - a. “Access” means: (1) to enter a location; or (2) to obtain, read, copy, edit, divert, release, affect, alter the state of, or otherwise view data or systems in any form, including through information technology (IT) systems, cloud computing platforms, networks, security systems, and equipment (software and hardware). For the avoidance of doubt, Access shall be construed broadly to include rather than exclude considered conduct.
 - b. “Call Detail Record” (“CDR”) means the data records or call log records that contain information about each call made by a user and processed by a switch, call manager, or call server.
 - c. “Customer Proprietary Network Information” (“CPNI”) means as set forth in 47 U.S.C. § 222(h)(1).
 - d. “Cybersecurity Incident Response Plan” means a plan or processes put in place to develop and implement the appropriate activities to take action regarding a detected cybersecurity event that has been determined to have an impact on the organization prompting the need for response and recovery.
 - e. “Date of FCC Approval” means the date on which the FCC releases a public notice granting the FCC Application.
 - f. “Domestic Communications” (“DC”) means:
 - (i) Wire Communications or Electronic Communications, as defined by 18 U.S.C. § 2510, (whether stored or not), from one location within the United States, including its territories, to another location within the United States; or

¹ 85 Fed. Reg. 19643 (Apr. 8, 2020).

² TT NO: TT 20-008 TO -12 | FCC FILE NOS.: WC DOCKET NO. 20- 38; ITC-ASG-20200127-00015; ITC-T/C-20200127-00016; ITC-T/C-20200127-00017.

- (ii) The U.S. portion of a Wire Communication or Electronic Communication (whether stored or not) that originates or terminates in the United States or its territories.

g. “Domestic Communications Infrastructure” (“DCI”) means any system of the GCX Companies that supports any communications originating or terminating in the United States, including its territories, including any transmission, switching, bridging, and routing equipment, and any associated software (with the exception of commercial-off-the-shelf (“COTS”) software used for common business functions, *e.g.*, Microsoft Office) used by, or on behalf of, the GCX Companies to provide, process, direct, control, supervise, or manage DC, but would not include the systems of entities for which the GCX Companies have a contracted arrangement for interconnection, peering, roaming, long-distance, or wholesale network Access.

h. “Electronic Surveillance” means:

- (i) The interception of wire, oral, or electronic communications as set forth in 18 U.S.C. §§ 2510(1), (2), (4) and (12), respectively, and electronic surveillance as set forth in 50 U.S.C. § 1801(f);
- (ii) Access to stored wire or electronic communications, as referred to in 18 U.S.C. § 2701 *et seq.*;
- (iii) Acquisition of dialing, routing, addressing, or signaling information through pen register or trap and trace devices or other devices or features capable of acquiring such information pursuant to law as set forth in 18 U.S.C. § 3121 *et seq.* and 50 U.S.C. § 1841 *et seq.*;
- (iv) Acquisition of location-related information concerning a subscriber or facility;
- (v) Preservation of any of the above information pursuant to 18 U.S.C. § 2703(f); and
- (vi) Access to or acquisition, interception, or preservation of, wire, oral, or electronic communications or information as described in (i) through (v) above and comparable state laws.

i. “Foreign” means non-United States, or its territories.

j. “Geolocation Data” means any information collected by any of the GCX Companies from their customers regarding a customer’s location or the customer’s device location.

k. “Government” means any government, or governmental, administrative, or regulatory entity, authority, commission, board, agency, instrumentality, bureau, or political subdivision, and any court, tribunal, judicial, or arbitral body.

l. “Internet Protocol Detail Record” (“IPDR”) means information about internet protocol-based usage and other activities that can be used by operation support systems (“OSS”) and business support systems (“BSS”) by recording data statistics that provide network insight on capacity, subscriber usage, and proactive network maintenance.

m. “Lawful U.S. Process” means U.S. federal, state, or local court orders, subpoenas, warrants, processes, directives, certificates or authorizations, and other orders, legal process, statutory authorizations, and certifications for Electronic Surveillance, physical search and seizure, production of tangible things, or Access to or disclosure of DC, call-associated data, transactional data, Subscriber Information, or associated records.

n. “Managed Network Service Provider” (“MNSP”) means any third party that has Access to Principal Equipment for the purpose of:

- (i) network operation; provisioning of Internet and telecommunications services; routine, corrective, and preventative maintenance, including switching, routing, and testing; network and service monitoring; network performance, optimization, and reporting; network audits, provisioning, creation and implementation of modifications or upgrades; or
- (ii) provision of DC or operation of DCI, including: customer support; OSS; BSS; Network Operations Centers (“NOCs”); information technology; cloud operations/services; 5G (Software Defined Networking, Network Functions Virtualization, Applications); and data center services and operations.

o. “Network Operations Center” (“NOC”) means any locations and facilities performing network management, monitoring, accumulating accounting and usage data, maintenance, user support, or other operational functions for DC.

p. “Offshore” means performing obligations of this LOA using entities and personnel outside of the territorial limits of the United States, whether or not those entities or personnel are employees of the GCX Companies.

q. “Outsource” means, with respect to DC, supporting the services and operational needs of the GCX Companies at issue in this LOA using contractors or third parties.

r. “Personally Identifiable Information” or “PII” means any information that uniquely identifies and correlates to a natural person or can be used to distinguish or trace a natural person’s identity, alone, including his or her name, social security number, or biometric records, or when combined with other personal or identifying information that is linked or linkable to a specific individual, including date and place of birth, or parent’s surname.

s. “Principal Equipment” means all telecommunications and information network equipment (*e.g.*, hardware, software, platforms, operating systems, applications, protocols) that supports core telecommunications or information services, functions, or operations.

t. “Security” means a condition that results from the establishment and maintenance of protective measures that enable an organization to perform its mission or critical functions despite risks posed by threats to its use of systems. Protective measures may involve a combination of deterrence, avoidance, prevention, detection, recovery, and correction that should form part of the organization’s risk management approach.

u. “Security Incident” means:

- (i) Any known or suspected breach of this LOA, including a violation of any approved plan, policy, or procedure under this LOA;
- (ii) Any unauthorized Access to, or disclosure of, U.S. Records;
- (iii) Any unauthorized Access to, or disclosure of, information obtained from or relating to Government entities; or
- (iv) Any one or more of the following which affect the computer network(s) or associated information systems of the GCX Companies:
 - A. Unauthorized disruptions to a service or denial of a service;
 - B. Unauthorized processing or storage of data;
 - C. Unauthorized modifications to system hardware, firmware, or software, including the identification of vulnerabilities introduced through a cyber supply chain compromise;
 - D. Unplanned incidents that cause activation of the GCX Companies’ Cybersecurity Incident Response Plans;
 - E. Attempts from unauthorized sources to Access systems or data if these attempts to Access systems or data may materially affect the company’s ability to comply with the terms of this LOA; or
 - F. An unauthorized occurrence that (1) actually or imminently jeopardizes the integrity, confidentiality, or availability of information or an information system; or (2) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.

v. “Sensitive Personal Data” means sensitive personal data as set forth in 31 C.F.R. § 800.241.

w. “Subscriber Information” means any information of the type referred to and accessible subject to the procedures set forth in 18 U.S.C. § 2703(c)(2) or 18 U.S.C. § 2709, as amended or superseded.

x. “U.S. Records” means the GCX Companies’ customer billing records, Subscriber Information, PII, Sensitive Personal Data, CDRs, IPDRs, CPNI, Geolocation Data, and any other information used, processed, or maintained in the ordinary course of business related to the services offered by the GCX Companies within the United States, including information subject to disclosure to a U.S. federal or state governmental entity under the procedures set forth in 18 U.S.C. §§ 2703(c), (d) and 18 U.S.C. § 2709.

Personnel

2. The GCX Companies agree to designate and maintain a U.S. law enforcement point of contact (“LEPOC”) in the United States who will be subject to prior approval by USDOJ, including the FBI. The LEPOC shall be a U.S. citizen residing in the United States or its territories unless USDOJ otherwise agrees in writing. The LEPOC must be approved by the FBI to receive service of Lawful U.S. Process including for U.S. Records, and, where possible, to assist and support lawful requests for Electronic Surveillance or production of U.S. Records by U.S. federal, state, and local law enforcement agencies.

3. The GCX Companies agree to provide the LEPOC’s PII to USDOJ within 15 days of the Date of FCC Approval. USDOJ agrees to object or non-object within 15 days from receiving the LEPOC’s PII.

4. The GCX Companies agree to notify USDOJ, including the FBI, in writing at least 30 days prior to modifying their LEPOC for USDOJ and FBI objection or non-objection. For those cases involving the unexpected firing, resignation, or death of the LEPOC, written notice will be provided within five days of such event. Under these circumstances, USDOJ and FBI will object or non-object to the replacement LEPOC within 30 days of notification.

5. The GCX Companies agree that the designated LEPOC will have Access to all U.S. Records, and, in response to Lawful U.S. Process, will make such records available promptly and, in any event, will respond to the request no later than five days after receiving such Lawful U.S. Process unless USDOJ grants an extension.

6. The GCX Companies agree to implement, either directly or through a vendor, a process to screen existing or newly-hired personnel who have Access to the GCX Companies’ DC, DCI, or U.S. Records (e.g., GCX Companies’ personnel, GCX subsidiary’s personnel, or personnel of an Outsourced or Offshored service provider performing under an agreement with the GCX Companies). The personnel screening process shall include background investigations, public criminal records checks, or other analogous means to ascertain a person’s trustworthiness. The GCX Companies further agree to provide USDOJ with a written description of this

personnel-screening process no later than 60 days after the Date of FCC Approval. USDOJ agrees to object or non-object within 60 days of receiving such description.

7. The GCX Companies agree to notify USDOJ of all Foreign persons (*e.g.*, Foreign employees, Foreign employees of GCX's Foreign subsidiaries, and Foreign employees of approved Outsourced or Offshored service providers) that they intend to allow Access to U.S. Records, DC, or DCI. The GCX Companies agree to make such notification no less than 30 days prior to the date by which they are seeking such Access be granted; or, with respect to any Foreign persons with such Access as of the Date of FCC Approval, within 30 days of the Date of FCC Approval. The GCX Companies further agree to provide the PII to USDOJ for each Foreign person so identified. USDOJ agrees to object or non-object within 30 days of receiving notice.

Security Officer

8. The GCX Companies agree to designate and maintain a security officer ("Security Officer") who is a non-dual United States citizen residing in the United States and may also designate and maintain an alternate security officer ("Alternate Security Officer") to fulfill the responsibilities of the Security Officer in the event of his or her unavailability. The proposed Security Officer (and any Alternate Security Officer) must be eligible to obtain and maintain a "Secret" level or higher U.S. Government security clearance immediately upon appointment. The Security Officer and any Alternate Security Officer will have the appropriate authority and skills to implement the terms of this LOA and to address security concerns identified by USDOJ. The Security Officer and any Alternate Security Officer will have the appropriate senior-level corporate authority within the GCX Companies to perform his/her duties under this LOA. The Security Officer and any Alternate Security Officer will possess the necessary resources and skills to enforce this LOA and to act as a liaison to USDOJ regarding compliance with this LOA and to address any national security or law enforcement issues arising during the GCX Companies' due course of business. The GCX Companies will provide the Security Officer and any Alternate Security Officer with Access to the GCX Companies' business information that is necessary for the Security Officer and any Alternate Security Officer to perform his/her duties.

9. The Security Officer will be available 24 hours per day, 7 days per week, to respond to and address any national security or law enforcement concerns that USDOJ may raise with respect to the GCX Companies or their operations, except that if the GCX Companies designate an Alternate Security Officer, then in the event that the Security Officer is unavailable, the Alternate Security Officer will be available to respond to and address such concerns. Upon request by USDOJ, the Security Officer or, as applicable, Alternate Security Officer, will make himself/herself available in person within the United States or its territories within 72 hours, at a date and location, including in a classified setting, as deemed necessary by USDOJ.

10. The GCX Companies agree to nominate a proposed candidate for Security Officer to USDOJ within 15 days of the Date of FCC Approval, and thereafter will provide at least 10 days' notice of a Security Officer's departure, and 30 days' prior notice of a new Security Officer designation (except in the case of the unexpected firing, resignation, or death of the Security Officer in which case such written notice of such departure or designation must be provided within five days of such event). The GCX Companies further agree to not maintain a

vacancy or suspension of the Security Officer position for a period of more than 60 days. In the event that the GCX Companies designate an Alternate Security Officer, the GCX Companies will nominate a proposed candidate for Alternate Security Officer at least 30 days prior to the date on which the GCX Companies propose to designate an Alternate Security Officer. The GCX Companies agree to provide the proposed Security Officer's (and any Alternate Security Officer's) PII with the nomination, along with the proposed Security Officer's plan to ensure relevant personnel are appropriately trained in LOA compliance. All Security Officer nominations and any Alternate Security Officer nominations will be subject to USDOJ review and non-objection and may be subject to a background check at the sole discretion of USDOJ. USDOJ will object or non-object to the proposed Security Officer or Alternate Security Officer, if applicable, within 30 days of notification. The GCX Companies agree to address concerns raised by USDOJ regarding the selection and identity of the Security Officer and any Alternate Security Officer.

Lawful U.S. Process and Requests for Information

11. The GCX Companies agree to comply with all applicable lawful interception statutes, regulations, and requirements, as well as comply with all court orders and other Lawful U.S. Process for lawfully authorized Electronic Surveillance. The GCX Companies further agree to certify to USDOJ their compliance with the Communications Assistance for Law Enforcement Act ("CALEA"), 47 U.S.C. §§ 1001-1010, and its implementing regulations, within 30 days from the Date of FCC Approval.

12. The GCX Companies agree to provide notice of any material modification to their lawful intercept capabilities to USDOJ within 30 days of such modification and will re-certify their compliance with CALEA no more than 60 days following their notice to USDOJ of any material new facilities, services, or capabilities.

13. The GCX Companies agree that the designated LEPOC will have Access to all U.S. Records, and, in response to Lawful U.S. Process, will make such records available promptly and, in any event, will respond to the request no later than five days after receiving such Lawful U.S. Process unless USDOJ grants an extension.

14. The GCX Companies agree not to provide, or otherwise allow the disclosure of, or Access to, U.S. Records, DCI, or DC, to any Foreign Government, Foreign entity, or any Foreign person, without prior written consent of USDOJ, or a court of competent jurisdiction in the United States.

15. The GCX Companies agree not to disclose the receipt of Lawful U.S. Process, or compliance with Lawful U.S. Process, to any Foreign Government, Foreign entity, or any person not authorized under the Lawful U.S. Process, without prior written consent of USDOJ, or a court of competent jurisdiction in the United States.

16. The GCX Companies agree to refer any requests for information described in Paragraphs 14 or 15 from a Foreign person or a Foreign Government, including any legal process from a Foreign Government, to USDOJ as soon as possible, but in no event later than five days

after such a request, or legal process, is received by, or made known to, the GCX Companies, unless disclosure of the request, or legal process, would be in violation of U.S. law, or in violation of an order of a court of competent jurisdiction in the United States.

17. The GCX Companies agree not to comply with such requests from Foreign Governments and Foreign persons without prior written consent of USDOJ, or an order of a court of competent jurisdiction in the United States.

18. The GCX Companies agree to ensure that U.S. Records are not subject to mandatory destruction under any Foreign laws.

Unauthorized Access and Security Incidents

19. The GCX Companies agree to take all appropriate measures to prevent unauthorized Access to U.S. Records, DC, and the DCI.

20. The GCX Companies agree to take all appropriate measures to prevent any unlawful use or disclosure of information relating to U.S. Records or DC.

21. The GCX Companies agree to prepare: (1) a Cybersecurity Plan; and (2) a comprehensive System Security Plan (“SSP”) (together the “Plans”), each of which shall be guided by the current version of the National Institute of Standards and Technology (NIST) Cybersecurity Framework, and incorporate applicable controls found in NIST SP 800-53, NIST SP 800-171, or other international information security standards. The GCX Companies will provide copies of those Plans to USDOJ within 60 days of the Date of FCC Approval for objection or non-objection. Furthermore, the GCX Companies agree that the Plans will be updated when appropriate to conform with evolving information security standards and that the GCX Companies will make and implement additional modifications to these Plans to address concerns raised by USDOJ. USDOJ agrees to object or non-object within 60 days of receiving each version of the Plan.

22. The GCX Companies agree that their Plans will include, among other things, policies relating to their information security, supply chain security, cybersecurity incident response, remote Access, physical security, cybersecurity, third-party contractors, Outsourcing and Offshoring, maintenance and retention of system logs, periodic control assessments, protection of Lawful U.S. Process, protection of U.S. Records and DC obtained by the GCX Companies in the ordinary course of business, and the GCX Companies’ plans regarding new contracts or amendments to existing contracts with third-party service providers requiring those third parties to: a) notify the GCX Companies when required under Paragraphs 25 and 26, and b) screen personnel as required under Paragraph 6 and 7.

23. The GCX Companies further agree to take timely and appropriate remedial measures, as recommended by the U.S.-Computer Emergency Readiness Team/Cybersecurity and Infrastructure Security Agency (“US-CERT”/“CISA”), an Information Sharing and Analysis Center (“ISAC”), or similar U.S. authority, to respond and recover from any cyber or supply chain incident and mitigate vulnerabilities.

24. The GCX Companies agree to notify USDOJ at least 30 days prior to changing the location for storage of U.S. Records or DC. USDOJ will object or non-object within 30 days of receipt of the GCX Companies' submission. Such notice shall include:

- a. A description of the type of information to be stored in the new location;
- b. The custodian of the information (even if such custodian is the GCX Companies);
- c. The location where the information is to be stored;
- d. Updated SSP and Cybersecurity Plans detailing the physical/logical protections at the new location; and
- e. The factors considered in deciding to store that information in the new location.

Reporting Incidents and Breaches

25. The GCX Companies agree to report to USDOJ promptly, and in any event no later than 48 hours, after they learn of information that reasonably indicates a known or suspected:

- a. Security Incident;
- b. Unauthorized Access to, or disclosure of, any information relating to services provided by the GCX Companies, or referring or relating in any way to the GCX Companies' customers in the United States or its territories;
- c. Any unauthorized Access to, or disclosure of, DC in violation of federal, state, or local law; or
- d. Any material breach of the commitments made in this LOA.

26. The GCX Companies agree to require any third-party service provider to disclose to the GCX Companies any data breach of any U.S. Records or DC, or any loss of U.S. Records or DC, whether from a data breach, or other cause, within 48 hours of the third party discovering the breach or loss. The GCX Companies agree further to require any third-party service provider to disclose to the GCX Companies, within 48 hours of discovery, any critical exposure, threats, and vulnerabilities associated with the products or services provided to the GCX Companies that are the result of the insertion of counterfeits, unauthorized production, tampering, theft, or insertion of malicious software and hardware into such products or services or into the third-party providers' supply chain.

27. The GCX Companies agree to notify USDOJ, including the points of contact ("POCs") listed in this LOA, in writing of any Security Incident or breach described in this LOA. Such notification shall take place no later than 48 hours after the GCX Companies have knowledge, or are informed by, a third party providing Outsourced or Offshored services to the GCX Companies that the incident, intrusion, or breach has taken or is taking place, or sooner when required by statute or regulations.

28. The GCX Companies agree to notify the FBI and U.S. Secret Service as provided in 47 C.F.R. § 64.2011 within seven business days after reasonable determination that a person without authorization, or in exceeding his or her authorization, has gained Access to, used, or disclosed CPNI, whether through the GCX Companies' network or that of a third party used by

the GCX Companies, and shall electronically report the matter to the central reporting facility through the following portal: <https://www.cpnireporting.gov>.

Principal Equipment

29. The GCX Companies agree to provide USDOJ within 30 days of the Date of FCC Approval, a Principal Equipment list. USDOJ will object or non-object to the Principal Equipment list within 60 days of receipt. The Principal Equipment list shall include the following:

- a. A complete and current list of all Principal Equipment, including:
 - (i) a description of each item and the functions supported,
 - (ii) each item's manufacturer (even if GCX), and
 - (iii) the model and/or version number of any hardware or software.
- b. The name, address, phone number, and website for any vendors, contractors, or subcontractors involved in providing, installing, operating, managing, repairing, or maintaining the Principal Equipment.

30. The GCX Companies agree to notify USDOJ in writing at least 30 days prior to introducing any new Principal Equipment of a different make or model than the Principal Equipment identified and approved pursuant to Paragraph 29, or subsequently approved by USDOJ pursuant to this paragraph, or modifying any of their Principal Equipment. USDOJ will object or non-object to such new Principal Equipment or modification to the Principal Equipment within 30 days of receipt of notice.

31. The GCX Companies agree to provide USDOJ with the name, address, phone number, and website of any providers, suppliers, and entities that will perform any maintenance, repair, or replacement that may result in introduction of new Principal Equipment or modification to Principal Equipment or systems or software used with or supporting the Principal Equipment (including if it is a GCX foreign subsidiary). USDOJ will object or non-object to the nominated providers, suppliers, and entities selected by the GCX Companies within 30 days of receipt of notice.

32. The GCX Companies agree to provide to USDOJ updated network diagrams and topology maps showing all facilities, devices, interfaces, Points of Presence ("PoPs"), exchange points, and NOCs within 60 days from the Date of FCC Approval.

Outsourced and Offshored Services

33. The GCX Companies agree to provide USDOJ within 30 days of the Date of FCC Approval a list of all Outsourced or Offshored service providers that provide services to the GCX Companies (including GCX's Foreign subsidiaries or service providers that are hired through GCX's Foreign subsidiaries to the extent they provide the services to the GCX Companies detailed below). USDOJ will object or non-object to the Outsourced and

Offshored service provider list within 60 days of receiving it. The list should include any Outsourced or Offshored service provider that provides services for:

- a. MNSP services;
- b. NOC(s);
- c. Network maintenance services;
- d. Billing or customer support services;
- e. Any operation or service that could potentially expose the DCI, DC, or U.S. Records; and
- f. Deploying any network elements, hardware, software, core network equipment, and network management capabilities, including those that are owned, managed, manufactured, or controlled by a Foreign Government.

The GCX Companies further agree to provide the name, address, phone number, website, and description of services provided for each Outsourced or Offshored provider included on the list submitted to USDOJ pursuant to this paragraph.

34. The GCX Companies agree to notify USDOJ in writing no less than 30 days prior to the use of any new Outsourced or Offshored service providers that will provide any of the services described in Paragraph 33. The GCX Companies agree that such notification shall include all of the identifying information contained in Paragraph 33 for the new Outsourced or Offshored service provider.

35. USDOJ will object or non-object to any new Outsourced or Offshored service providers within 30 days of receiving notice.

Network Operations Centers

36. The GCX Companies agree to notify USDOJ in writing at least 60 days prior to changing the location of their NOC(s). DOJ will object or non-object to any new NOC location(s) within 60 days of receiving notice of the proposed location change. The GCX Companies will provide the address, owner (even if the GCX Companies), Principal Equipment, and MNSP(s) (as well as any new Outsourced or Offshored service providers) of the new NOC(s) with the notification, as well as appropriately updated SSP and Cybersecurity Plans.

Change in Ownership and Service Portfolio

37. The Parties agree to provide USDOJ notice of any changes to the GCX Companies' business, including but not limited to corporate structure changes, , corporate name changes, business model changes, corporate headquarter location changes, or business operation location changes no less than 30 days in advance of such change. The Parties also agree to provide USDOJ notice within 30 days of initiating any bankruptcy proceeding or any other legal proceeding undertaken for the purpose of liquidating, reorganizing, refinancing, or otherwise seeking relief from all or some of the Parties' debts.

38. The Parties agree to provide USDOJ notice of any ultimate beneficial ownership changes as described herein. The Parties will notify USDOJ 30 days in advance of the following ownership changes: (1) a change of the person(s) or entities in ultimate control of the general partners or any of their respective successors as general partner, managing member or other similar managing fiduciary of 3iN's funds, vehicles and/or accounts that invest, directly or

indirectly, into the GCX Companies; (2) any new investment by, or change in existing rights of, any shareholders of any of the 3iN's funds, vehicles and/or accounts that invest, directly or indirectly, into the GCX Companies that results in such shareholder obtaining a right to: (a) indirectly or directly contribute to the management or control of the activities of 3iN or the GCX Companies; and/or (b) gain Access to DC, DCI, or U.S. Records. In addition, with respect to any calendar month during which any non-U.S. ultimate beneficial owner has acquired a direct or indirect equity interest (voting or non-voting) in the GCX Companies of five percent or more, the Parties shall provide an updated list of all non-U.S. ultimate beneficial owners holding or controlling a direct or indirect equity stake (voting or non-voting) of five percent or more in the GCX Companies no later than the end of the following calendar month.

39. The GCX Companies agree to provide USDOJ notice of any material addition to their current portfolio of service offerings, including offering other services beyond their current service portfolio, no less than 30 days in advance of such change. USDOJ will object or non-object to the proposed new services within 30 days of receiving such notice.

Third-Party Compliance Audit

40. At its sole discretion, but no more frequently than once every calendar year unless the original audit is found by USDOJ to have been unsatisfactory, USDOJ may request the GCX Companies undergo a neutral third-party audit of LOA compliance (including any plan, policy, or procedure approved under this LOA and/or the GCX Companies' compliance with any previous LOA regarding their Section 214 authorizations). In connection with the audit:

- a. Within **60 days** of USDOJ requesting a third-party audit, the GCX Companies will nominate a third-party auditor, subject to USDOJ approval. Within **60 days** of the nomination, USDOJ will approve or disapprove the nominated third-party auditor. As part of the auditor nomination and approval process, the GCX Companies will disclose information regarding the GCX Companies' and nominated auditor's pre-existing relationship (if any).
- b. The GCX Companies will be solely responsible for any costs associated with any third-party audit carried out pursuant to this Section.
- c. The GCX Companies will ensure the selected third-party auditor submits, within 15 days of USDOJ non-objection to the auditor and prior to commencing the audit, a methodology and proposed scope of audit, both of which will be subject to approval by USDOJ. The statement of work shall allow for direct communication between USDOJ and the third-party auditor, without notice to or participation of the GCX Companies.
- d. The GCX Companies will ensure that the executed engagement agreement with the third-party auditor is provided to USDOJ within **five days** of execution.
- e. The third-party auditor will promptly deliver to USDOJ and the GCX Companies all reports and related information generated or gathered during its review that relate directly to the GCX Companies' compliance with the terms of this LOA and will

agree to meet independently with USDOJ upon request. Unless otherwise agreed to by USDOJ, the Compliance Audit report shall be submitted to USDOJ by the auditor at the same time it is submitted to the GCX Companies.

Annual Report

41. The GCX Companies agree to provide an annual report to USDOJ regarding the company's compliance with this LOA, to include:

- a. If the GCX Companies submitted no notifications to USDOJ pursuant to this LOA during the preceding year, a certification that there were no developments that the GCX Companies were required to report under the LOA during the year;
- b. Description of the GCX Companies' handling of U.S. Records, DC, and Lawful U.S. Process (*i.e.*, whether handled properly and in accordance with the assurances contained herein), including an updated list of individuals with Access to U.S. Records, DC, and DCI, including an updated list of the PII of Foreign persons with Access, as well as a description of the type of Access and control Foreign persons have;
- c. Updated Principal Equipment and Offshored and Outsourced Service Provider Lists;
- d. Notice if the GCX Companies have used in the past year, or plan to use in the future, logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software in their DCI; Principal Equipment; or other systems supporting DC, DCI, or U.S. Records, that was designed, produced, or maintained by suppliers owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary (as designated by the Department of Commerce under Executive Order 13873 or any U.S. federal agency given subsequent comparable authority);
- e. Notice if the GCX Companies have used in the past year, or plan to use in the future, logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software in their DCI; Principal Equipment; or other systems supporting DC, DCI, or U.S. Records, from a provider listed on the FCC's Covered List (*See* FCC, List of Equipment and Services Covered by Section 2 of the Secure Networks Act, <https://www.fcc.gov/supplychain/coveredlist>), the Commerce Department's Entity List, or subject to a removal or exclusion order issued by the Secretary of Homeland Security, the Secretary of Defense, or the Director of National Intelligence pursuant to the SECURE Technology Act, 41 U.S. Code § 1321 *et seq.*;
- f. List of any relationships with Foreign-owned telecommunications partners, including any network peering (traffic exchange) or interconnection relationships;
- g. Updated network diagrams and topology maps showing all facilities, devices, interfaces, PoPs, exchange points, and NOCs;
- h. Updated SSP and Cybersecurity Plans;
- i. Notice of the LOA compliance trainings conducted in the past year;
- j. Updated organizational chart showing all owners with a five percent or greater ownership share;
- k. Report(s) of any Security Incidents;

- l. A re-identification of every location(s) in which the GCX Companies store U.S. Records and the types of U.S. Records collected and stored;
- m. A re-identification of the name of and contact information of the LEPOC, Security Officer, and Alternate Security Officer;
- n. A list of all filings or notices to the FCC in the prior year, and a copy of these filings if requested by USDOJ;
- o. Certification of compliance with CALEA and any other applicable U.S. lawful interception statutes, regulations, and requirements;
- p. A description of the services that the GCX Companies provide in the United States to include: the specific services provided using an FCC license or authorization and other services they provide in the United States that do not require FCC license or authorization. Such a description should also detail any services provided to government or critical infrastructure customers; and
- q. Notification of any reasonably foreseeable matter that would give rise to an obligation under this LOA.

The annual report will be due one year after the Date of FCC Approval and every year thereafter. The GCX Companies agree to send electronic copies of the annual report and all notices and communications required under this LOA to the following individuals or any other individuals that USDOJ identifies to the GCX Companies in the future: Christine Quinn, USDOJ (at Christine.Quinn3@usdoj.gov); and Eric Johnson, USDOJ (at Compliance.Telecom@usdoj.gov). Upon USDOJ request, the GCX Companies agree to provide USDOJ with paper copies of any annual report, notices, or communications required under this LOA.

Site Visits

42. The GCX Companies agree to permit USDOJ's requests for site visits and information, approve all requests to conduct on-site interviews of the GCX Companies' employees, and provide all documents necessary to verify the implementation of and compliance with the terms of this LOA, or to identify grounds for modification of this LOA.

General Provisions

43. If USDOJ finds that the terms of this LOA are inadequate to resolve any national security or law enforcement risks, the Parties agree to resolve USDOJ's concerns, according deference to the USDOJ's views on the need for modification. Rejection of a proposed modification shall not alone be dispositive, but failure to resolve national security or law enforcement concerns may result in a request that the FCC modify, condition, revoke, cancel, terminate, or render null and void any relevant license, permit, or other authorization granted by the FCC to the GCX Companies or their successors-in-interest, or any other appropriate enforcement action required to address the concern.

44. The Parties agree that in the event that the Parties breach the commitments set forth in this LOA, to include conduct contrary to timely USDOJ objection to any notice submitted pursuant to this LOA, a recommendation may be made that the FCC modify, condition, revoke, cancel, enter other declaratory relief, or render null and void any relevant

license, permit, or other authorization granted by the FCC to the GCX Companies or their successors-in-interest, in addition to pursuing any other remedy available by law or equity.

45. For purposes of counting days in this LOA, the day of the event that triggers the period is excluded, but every day thereafter is counted, including intermediate Saturdays, Sundays, and legal holidays. Include the last day of the period, but if the last day is a Saturday, Sunday, or legal holiday, the period continues to run until the end of the next day that is not a Saturday, Sunday, or legal holiday.

46. The Parties agree to permit disclosure of information submitted to the FCC in confidence pursuant to 47 C.F.R. § 0.442 to Federal government departments, agencies, and offices whose principals are listed in Section 3 of Executive Order 13913.

47. The GCX Companies understand that, upon execution of this LOA by an authorized representative or attorney, or shortly thereafter, the FCC will be notified that there is no objection to grant of the application.

For GCX Holdings Limited

DocuSigned by:

Carl Grivner

302859AA5238464

Carl Grivner, Director/CEO

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For Vanco US, LLC, Vanco Solutions, Inc., and Reliance Globalcom Services, Inc.

DocuSigned by:

Victor Silkin

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Victor Silkin, Director

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For 3i Infrastructure plc



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